

**BEFORE
THE FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-01

VISUAL COMFORT & CO.

V.

COSCO SHIPPING LINES CO., LTD.

**COMPLAINANT’S UNOPPOSED
MOTION FOR LEAVE TO FILE AMENDED COMPLAINT**

Pursuant to 46 CFR § 502.66(a) and 46 CFR § 502.69 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant VISUAL COMFORT & CO (“VCC” or “Complainant”), by and through its undersigned counsel, hereby submits this Motion requesting leave to file the attached Verified Amended Complaint.

VCC filed its Verified Complaint against COSCO Shipping Lines (North America) Inc. on December 15, 2023, which was accepted and served by the Federal Maritime Commission (FMC or the “Commission”) on January 4, 2024 [Dkt. 1]. The initial Complaint alleged various violations of the Shipping Act, including violation of 46 U.S.C. § 41102(c) for failure to establish, observe, and enforce just and reasonable practices relating to receiving, handling, storing, and delivering VCC’s property and 46 U.S.C. § 41104(a)(10) for unreasonable refusal to deal or negotiate.

On January 24, 2024, COSCO Shipping Lines (North America) Inc. filed and served its Verified Motion to Dismiss for Lack of Jurisdiction (“MTD”). In the MTD, COSCO Shipping Lines (North America) Inc. argued that the FMC lacked jurisdiction over because it is not a vessel-

operating common carrier as defined in the Shipping Act. The MTD also stated COSCO Shipping Lines (North America) Inc.’s position that if Complainant were to request leave to file an amended complaint naming COSCO Shipping Lines Co. Ltd., COSCO’s vessel-operating common carrier, as the sole Respondent, it would not oppose such a request.¹ MTD at fn.1. This Motion and the attached Verified Amended Complaint does just that; and proposes no other amendments.

In accordance with 46 C.F.R. § 502.66, the Commission or presiding officer has discretion to permit or reject amendments to any pleading, including complaints. Any proposed amendment may not broaden the issues without offering the opposing party the opportunity to reply to the amended pleading and to prepare for the broadened issues. *Id.* The Commission’s Rules do not provide predetermined criteria for assessing whether to grant or deny a motion to amend a complaint. 46 C.F.R. § 502.12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” The Federal Rules of Civil Procedure, more specifically, Fed. R. Civ. P. 15(a)(2) provides that, beyond the one-time allowance for a party to amend its pleading as a matter of course within 21 days of service of a responsive pleading outlined in Fed. R. Civ. P. 15(a)(1)(B), amendments to a pleading are also permitted either with opposing parties’ written consent or leave of court. Leave should be freely given when justice so requires. Fed. R. Civ. P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.”

Bancoult v. McNamara, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted).

¹ In addition, pursuant to 46 C.F.R. § 502.71(a), on February 5, 2024, Complainant met and conferred with counsel for the Respondent regarding this motion and Respondent indicated that it does not oppose this Motion.

Complainant's proposed Amended Complaint is attached hereto as Exhibit A. The proposed amendments do not broaden the issues of this action, but rather replace an allegedly erroneously named Respondent with a new Respondent over which this Commission has jurisdiction. Fed. R. Civ. P. 15(a)(2) provides that leave to amend should be freely given "when justice so requires." This is clearly such an instance. The proposed amendments seek to more accurately describe the relationships and facts already alleged, which will ultimately result in a more just decision by this Commission.

This Motion for Leave to Amend is brought for good cause, is made within the 21-day period provided in the Federal Rules, is not futile because it corrects an alleged jurisdictional defect, does not prejudice the Respondent, and is made with the opposing party's consent. For all the foregoing reasons, Complainant requests this Commission grant the Motion and accept the Amended Complaint attached as Exhibit A.

Date: February 5, 2024

Respectfully submitted,

BUCHANAN INGERSOLL & ROONEY LLP

/s/ Jennifer Oliver

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 5th day of February 2024, the foregoing Unopposed Motion for Leave to File Amended Complaint and Exhibit A thereto was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth Chief Administrative Law Judge
Presiding Administrative Law Judge
judges@fmc.gov

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